

Prabhakar Singh v. Executive Engineer, Purvanchal Electricity Distribution Corporation

High Court of Judicature at Allahabad · Division Bench · 28 January 2010 · WRIT - C No. 3944 of 2010 · **Writ dismissed summarily; petitioner relegated to Clause 6.5.**

HEADNOTE

A consumer disputing the correctness of an electricity bill must pursue the statutory objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court will not interfere in writ jurisdiction.

FACTUAL SUMMARY

Prabhakar Singh filed a writ petition in the Allahabad High Court against the Executive Engineer, Purvanchal Electricity Distribution Corporation, and others. He challenged the correctness of an electricity bill. Counsel for both sides were heard on 28 January 2010 by a Division Bench. The Court did not examine the bill on merits and treated the dispute as one for which the Supply Code already provided a dedicated objection route.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-alternate-remedy

HOLDING

Where the petitioner disputes the correctness of an electricity bill, the remedy is under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court will not interfere in writ jurisdiction; the petition is dismissed summarily, leaving the petitioner to invoke that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Left to the Clause 6.5 objection remedy; no merits finding on the bill. ¶ 1